

25STCV34997 25STCV34997

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C09%2F10%2F2026

Source SHA-256: e292cadac494ec1019d4d8a9d2e090c918c1c36d1567b89cb942dd0aaf711528

Case Number: 25STCV34997 Hearing Date: September 10, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEFENDANT'S

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION TO COMPEL ARBITRATION
AND STAY PROCEEDINGS

Moving Party: Defendant, American Financial Integrity of California,
Inc.

Opposing Party: Plaintiff, Teresa Montes Salmoran [Notice of
Non-Opposition]

Notice: OK

Background Facts

Plaintiff Teresa Montes Salmoran,
individually, and on behalf of other aggrieved employees pursuant to the
California Private Attorneys General Act ("PAGA") (collectively, "Plaintiff"),
brings this PAGA action against her current employer, American Financial
Integrity of California, Inc. ("Defendant").

Now before the Court is Defendant's

June 11, 2026, motion for an order compelling Plaintiff's individual PAGA claim
for Labor Code violations into arbitration and staying the representative PAGA
proceedings pending the outcome of arbitration.

Defendant's motion is not opposed

by Plaintiff, who on August 26, 2025, filed a notice of non-opposition to
Defendant's motion, indicating: "Plaintiff does not oppose Defendant's

requested relief to the extent Defendant seeks an order: (1) compelling Plaintiff's individual PAGA claim to arbitration; and (2) staying Plaintiff's representative/non-individual PAGA claim pending completion of the arbitration."

Motion to Compel
Arbitration, Stay Proceedings

a. Legal
Standard

A party seeking arbitration has the "burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence[.]" (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842 (Ruiz).) "Once that burden is satisfied, the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition." (Lacayo v. Cataline Restaurant Group Inc. (2019) 38 Cal.App.5th 244, 257.) "The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination." (Ruiz, supra, at p. 842.)

Discussion

Here, given the open non-opposition to relief by Plaintiff, i.e., in essence, a stipulation to arbitrate Plaintiff's individual PAGA claim, Defendant's motion is meritorious and warrants relief.

c. Conclusion

Defendant American Financial Integrity of California, Inc.'s motion to compel arbitration and stay proceedings is GRANTED.

This action is ORDERED STAYED pending resolution of arbitration.

The Court SETS an Order to Show Cause re Status of Arbitration for Wednesday, December 13, 2026, at 8:30 AM.

Five court days prior to the hearing, the parties SHALL file a joint statement to exceed no more than two pages, caption page not included, detailing the status of arbitration proceedings.

Defendant American Financial Integrity of California, Inc. is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.